

Kisan Inter College, Gurgawan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 May 2018 · Writ - C No. 19100 of 2018 · **Writ dismissed; petitioner relegated to Paragraph 6.5 of the Supply Code.**

HEADNOTE

A consumer disputing the correctness of an electricity bill must take recourse under Paragraph 6.5 of the Electricity Supply Code, 2005. The High Court declined to entertain a writ against a demand of Rs. 5,20,792 and dismissed the petition for that statutory alternate remedy.

FACTUAL SUMMARY

Kisan Inter College, Gurgawan petitioned the Allahabad High Court against an electricity bill dated 11 May 2018 demanding Rs. 5,20,792. Counsel submitted that the bill was incorrect. The Division Bench of Pankaj Mithal and Rajiv Joshi, JJ. held that such a billing dispute could be raised under Paragraph 6.5 of the Electricity Supply Code, 2005, and, given that statutory alternate remedy, declined to entertain the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — alternate remedy

HOLDING

A dispute that an electricity bill is incorrect is to be raised under Paragraph 6.5 of the Electricity Supply Code, 2005; a writ petition will not be entertained when that statutory alternate remedy is available. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing the correctness of an electricity bill must take recourse under Paragraph 6.5 of the Electricity Supply Code, 2005. The High Court declined to entertain a writ against a demand of Rs. 5,20,792 and dismissed the petition for that statutory alternate remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 11.5.2018 DEMANDING RS. 5,20,792 WAS IN FACT INCORRECT

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